

103

2026.PHHC.087383



IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M-32552-2026
Decided On: 12.06.2026

KAPIL

....PETITIONER(S)

VERSUS

STATE OF HARYANA

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. SS Mor, Advocate and
Mr. Rajat Mor, Advocate for the petitioner

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.52 dated 13.04.20266 under Sections 34 (3 (5) of BNS), 419 (319 of BNS), 420 (318 (4) of BNS), 467 (338 of BNS), 468 (336 (2) of BNS), 471 (340 (2) of BNS) of IPC registered at Police Station Gulha, District Kaithal, Haryana.

2. Contention

On behalf of the petitioner

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case. It is contended that the petitioner is merely a neighbour of the co-accused, Sultan Singh, and had appended his signatures to the registry proceedings in good faith, without any knowledge of the alleged impersonation. It is further submitted that no recovery is to be

effected from the petitioner and that the prosecution case is primarily founded on documentary evidence, which is already in the possession of the investigating agency. Learned counsel further submits that the petitioner is ready and willing to join the investigation and extend full cooperation to the investigating agency.

Notice of motion.

On behalf of the State/Complainant

On the asking of the Court, Mr. Ved Parkash, Sr. DAG Haryana for the respondent/State and Mr. Ajay Kumar Rana, Advocate for the complainant accept notice and vehemently oppose the prayer made by learned counsel for the petitioner on the ground that the petitioner, in connivance with the principal accused, got the sale deed executed by impersonating the complainant and by affixing forged signatures thereon.

3. Analysis

Be that as it may, learned State counsel has categorically submitted before the Court that, apart from the material referred to above, no other incriminating material has surfaced against the petitioner warranting custodial interrogation. Therefore, if the petitioner is willing to join the investigation and cooperate with the investigating agency, this Court finds no justification to decline the present petition.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

12.06.2026

NainaRajput

Whether speaking/reasoned : Yes/No

Whether reportable : Yes/No